1. **Promisee** – only a promisee can demand performance and not a stranger demand performance of the contract.
2. **Legal Representative** – legal representative can demand Exception performance. Contrary intention appears from the contract. Contract is of a personal nature.
3. **Third party** – Exception to "stranger to a contract"

30.02 Who will Perform the Contract?

i) Promisor himself (Section 40)

Under Para 1 to Section 40, it is laid down that where it appears from the nature of the contract, the intention of the parties that any promise contained in it must be performed by the promisor himself or by his legal representatives or by any other competent person employed by him, then such promise must be performed by the promisor himself or by his legal representatives or by any other competent person employed by him.

For Example X promises to sketch a site map of Y's house. X will have to perform this promise himself. Because it requires the skill of X.

ii) Agent (Section 40)

According to Para 2 of Section 40, the promisor may employ a competent person such as agent to perform the promise, if the contract is not formed on personal condition.

iii) Representations (Section 37)

A contract which involves the use of personal skill or it is found on personal considerations, comes to an end if the promisor dies. Of course in case of other contracts, the legal representatives of a deceased promisor are bound to perform it as provided in Para 2 of Section 37.

For Example M promises to sell his car for (Rs. 1,00,000) to N after a week. But, M dies after 5 days of the contract. M's representative will be liable to sell the car to N and N will be liable to pay Rs. 1,00,000/- to M's representative.

iv) Third Person (Section 41)

According to Section 41, if a promisee accepts the performance of the promise by a third person he cannot afterwards enforce it against the promisor.

v) Joint Promisors

(a) Devolution of Joint Liabilities (Section 42)

Section.42 of Indian Contract Act lays down that "When two or more persons have made a joint promise, then unless a contrary intention appears in the contract, all such persons, during their joint lives and after the death of the last survivor, representatives of all, jointly must fulfil the promise"

(b) Devolution of Joint Rights (Section 45)

"When a person has made a promise to two or more persons jointly, then unless there is a contract to the contrary, the right to claim performance rests as between him and them, with them during their joint lives: and after the death of them with representatives of such deceased person jointly with survivors, and after the death of last survivor, with the representatives of all jointly".

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